

MyHOAAppeal - Educational worksheet

HOA Fine Schedules and Caps Explained

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about published schedules, daily caps, and unauthorized amounts.

Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of published schedules, daily caps, and unauthorized amounts.
- * Make the decision point explicit: Your appeal should answer whether the assessed amount matches adopted schedules with evidence.
- * Compare options deliberately: Know whether you are closer to Schedule-compliant, Above schedule, or No published schedule.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to published schedules.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about published schedules, daily caps, and unauthorized amounts. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on published schedules, daily caps, and unauthorized amounts.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to whether the assessed amount matches adopted schedules.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around published schedules, daily caps, and unauthorized amounts.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to whether the assessed amount matches adopted schedules, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to published schedules, daily caps, and unauthorized amounts
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address whether the assessed amount matches adopted schedules
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether schedule-compliant or above schedule better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing published schedules, daily caps, and unauthorized amounts arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control whether the assessed amount matches adopted schedules.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on published schedules, daily caps, and unauthorized amounts; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around published schedules, daily caps, and unauthorized amounts.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on published schedules, daily caps, and unauthorized amounts. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering published schedules, daily caps, and unauthorized amounts?

- Yes - I have notices or governing excerpts -> go to quality

- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run this tree for published schedules, daily caps, and unauthorized amounts. Do not rely on memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about published schedules, daily caps, and unauthorized amounts.

Q (quality): Does your packet clearly address whether the assessed amount matches adopted schedules?

- Yes - defects and facts are indexed -> go to deadline

- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue published schedules, daily caps, and unauthorized amounts. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on published schedules, daily caps, and unauthorized amounts, and request a hearing or written decision in the same letter.

- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve published schedules, daily caps, and unauthorized amounts arguments even while clarifying timing.

- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Schedule-compliant | Above schedule | No published schedule

Typical signal

[Schedule-compliant] Clear written basis for schedule-compliant

[Above schedule] Partial or contested basis for above schedule

[No published schedule] High risk if you only have no published schedule

Owner priority

[Schedule-compliant] Preserve schedule-compliant with indexed proof

[Above schedule] Convert above schedule into a documented record

[No published schedule] Do not rely on no published schedule alone

Board / manager reaction

[Schedule-compliant] Harder to dismiss when exhibits are complete

[Above schedule] May stall or ask for more information

[No published schedule] Often treated as insufficient without follow-up writing

Next educational move

[Schedule-compliant] Advance the formal path for published schedules, daily caps, and unauthorized amounts

[Above schedule] Send a clarifying letter addressing whether the assessed amount matches adopted schedules

[No published schedule] Collect missing documents before arguing substance

Escalation risk if ignored

[Schedule-compliant] Lower if you stay on deadline

[Above schedule] Medium - ambiguity can harden into denial

[No published schedule] Higher - no published schedule gaps feed collections narratives

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